

		Moreover, the failure to file a written opposition or appear at the hearing cannot be deemed an admission that the motion was proper or that sanctions should be awarded. (Cal. Rules of Court, Rule 3.1348(B).) The motion to compel further responses to requests for production is DENIED. Counsel for Mr. Washington is ordered to serve notice of ruling on all three motions.
01430606	Collins - Trust	TENTATIVE RULING Case: Collins - Trust 01430606 Calendar No.: 6 Date: 07/15/2026 MOTION FOR LEAVE TO AMEND (ROA 50) Petitioner Guy Collins ("Petitioner") moves for leave to amend his First Amended Petition and file the proposed Second Amended Petition attached as Exhibit A to the moving papers. The motion is opposed by Respondent Kelly Collins ("Respondent"). <u>Proposed Eighth Cause of Action</u> Petitioner seeks to add an eighth cause of action for "Disinheritance of [Respondent] from the Estate of Joseph Eugene Collins" pursuant to Probate Code section 259 and Welfare and Institutions Code section 15610.30. Probate Code section 259 provides a remedy, not an independent cause of action. Specifically, Probate Code section 259 provides a forfeiture remedy in connection with an underlying cause of action for elder abuse. Furthermore, by its plain language, Probate Code section 259 is only available when the abused elder has passed away. It provides conditions by which a person "shall be deemed to have predeceased a decedent." (Emphasis added.) Notwithstanding the liberal policy in favor of granting leave to amend, the court has discretion to deny leave to amend where the proposed amendment is legally futile. (<i>Jo Redland Tr., U.A.D. 4-6-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th

142, 161-162; see also *California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280 [It is proper to deny leave to amend when the proposed amendment fails to state facts sufficient to constitute a cause of action.])

Thus, Petitioner's motion for leave to add the proposed eighth cause of action is **DENIED**.

Specifically, the court denies the request to make the following proposed amendments that pertain to the eighth cause of action:

- Page 2, lines 18-23;
- Paragraphs 153-172; and
- Prayer for Relief, paragraph 8.

Other Proposed Amendments

Petitioner further proposes to amend the pleading to add paragraphs 15, 33-34, 37-41, and 68-86. It is not clear whether these additions are necessary without the eighth cause of action. Moreover, said paragraphs appear to set forth new evidence to support the factual claims already made in the First Amended Petition. Thus, the proposed amendments do not readily appear to be necessary.

Similarly, the proposed amendments to the Prayer for Relief seem to consist in part of prayers for relief already included in the First Amended Petition.

The moving party must file a separate declaration which specifies: "(1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier." (CRC, Rule 3.1324.)

Here, the declaration of Petitioner's counsel in support of the motion does state the effect of each of the proposed amendments, nor does it state why each of the proposed amendments would be necessary and proper.

Thus, the court **DENIES** Petitioner's request for leave to make the remaining proposed amendments, namely the following:

- Paragraph 15;
- Paragraphs 33-34;
- Paragraphs 37-41;
- Paragraphs 68-86; and
- Prayer for Relief, paragraphs 9-12.

		<u>Opposition to Motion</u> In opposition to this motion, Respondent claims that the motion for leave should be denied because Petitioner waited until several months after discovery of the new facts to make the amendments and because the amendments would necessitate additional discovery and costs. The court finds such arguments unpersuasive. Courts may permit amendments at any stage in the proceedings, up to and including trial, so long as there is no prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i>(2003) 109 Cal.App.4th 739, 761.) Mere proximity to trial is not a sufficient reason to deny leave to amend, particularly where the moving party is the plaintiff. (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 967.) Increased discovery and attorneys' fees are not sufficient "prejudice." As one appellate court explained: "it seems unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend." (<i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557.) Respondent has not shown any resulting prejudice that warrants denial of this motion. Nonetheless, the motion must be denied for reasons stated above. Before bringing any new motion for leave to amend, Petitioner is ordered to make a good faith attempt to meet and confer with Respondent as to whether the parties can reach a stipulation as to any amendments. Petitioner is ordered to give notice of this ruling.
01415738	Richardson - Trust	TENTATIVE RULING Case: Richardson - Trust 01415738 Calendar No.: 8 Date: 07/15/2026